

Ms. Carson argues that the SAP is frivolous because it was filed “after the Court-ordered 10-day period had expired, [and] because it still seeks to effectively invalidate the Trust based on lack of capacity and undue influence.” (See Support Memo at 8:7-9.) She asserts that “all of Petitioner’s causes of action in the SAP attack the validity of the Trust and are thus time-barred under Probate Code section 16061.8 . . .” (*Id.* at 8:13-16.) Ms. Carson further complains of counsels repeated failure to serve notice of hearings on the operative petitions.

The Court is certainly sympathetic to Ms. Carson’s frustrations regarding Petitioner’s repeated failures to timely file pleadings, and to timely notice hearings. However, in assessing requests for sanctions pursuant to Code of Civil Procedure section 128.7, the Court is guided by Hanlon’s Razor: Never assume someone acted with malice when their actions can be explained by carelessness, incompetence, or a mistake.

That guidance is controlling here. While it is certainly conceivable that the repeated delays and unsuccessful pleadings *could* be evidence that Petitioner has been litigating with an improper purpose, they do not compel such a finding; they could, instead, be the product of zealous advocacy and lack of care.

Based on the foregoing, the Motions are, each, DENIED.

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Conservatorship of Deirdre Combs

26PR000101

[1] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON

[2] PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

APPEARANCE REQUIRED

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Estate of Brian Joseph Kosi

26PR000163

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO
ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED IN PART.

Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on September 23, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Julian Murillo v. Nissan North America, Inc.

24CV001704

PLAINTIFF’S MOTION FOR ATTORNEYS’ FEES

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is awarded attorneys’ fees in the amount of **\$8,217.50**. The fee award is payable within 60 days of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. By Minute Order dated September 9, 2026, the Court ordered the moving party to file and serve an amended notice which includes the missing notice. There is no amended notice on file. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Plaintiff Julian Murillo (“Plaintiff”) moves, pursuant to a signed settlement offer and the Song-Beverly Consumer Warranty Act (Civil Code section 1794, subdivision (d)), for an Order awarding his attorneys’ fees in the total amount of \$13,920.63, which consists of (1) \$7,936.50 in attorneys’ fees for Quill & Arrow, LLP; (2) a 1.25 multiplier enhancement on the attorneys’ fees (or \$1,984.13); and (3) an additional \$4,000.00 for Plaintiff’s counsel to review Defendant’s Opposition; draft the Reply; and attend the hearing on this Motion.

Defendant does not dispute Plaintiff’s entitlement to his reasonable attorneys’ fees. Rather, Defendant opposes the Motion, arguing that (1) Plaintiff’s counsel bills at excessive and unreasonable rates considering the routine nature of this lemon law case; (2) Plaintiff’s claimed fees are unreasonable and inflated; (3) Plaintiff’s counsel’s time records are rife with padded entries; and (4) Plaintiff’s fees, costs, and expenses incurred after the issuance of the accepted 998 offer were not reasonably necessary to the litigation. (Opp., 2:15-19.) Defendant requests a reduction of Plaintiff’s fees to \$3,894.10. This reduced amount is based on: (1) a reduction of billing hours from 22.7 to 10.5 (6.7 hrs prior to 998 offer issuance + 3.8 hrs for the present motion), (2) a reduction of hourly rates ranging from between \$175 to \$950 to a blended rate of \$150 for paralegals and administrative assistances, a blended rate of \$300 for eight associate attorneys, and \$400 for the managing attorney, and (3) denial of Plaintiff’s request for a multiplier and \$4,000 in anticipated fees. (Opp., 2:20-3:3.)²

² Defendant’s Opposition also seeks a reduction of Plaintiff’s costs. However, those are not part of Plaintiff’s Motion or properly before the Court at this time. Plaintiff served and filed a Memorandum of Costs on July 17, 2026. The proper vehicle for challenging costs claimed through a Memorandum of Costs is a motion to strike or tax